

SiyaBusa ERP

INVESTOR & PARTNER DOCUMENTATION

SHAREHOLDERS AGREEMENT TEMPLATE

VERSION 2.0 | APRIL 2026

COMPANY

Masaphokati Technologies (Pty) Ltd

TOTAL SHARES ISSUED

120,000,000

CLASSIFICATION

Confidential

WE RULE. WE GOVERN. WE EMPOWER.

☐ **LEGAL AGREEMENT TEMPLATE** — Shareholders agreement governing the relationship between the founders and seed investors in Masaphokati Technologies (Pty) Ltd.

SHAREHOLDERS AGREEMENT

This Shareholders Agreement (this "Agreement") is entered into as of [DATE]

BY AND AMONG:

1. THE COMPANY:

Masaphokati Technologies (Pty) Ltd (Registration No: [_____])

Address: [_____]

(hereinafter referred to as the "Company")

2. THE FOUNDERS:

2.1 **Sibusiso Mavuso**, ID No: [_____] , Address: [_____]

(hereinafter referred to as the "Founding Shareholder")

2.2 [CO-FOUNDER NAME, if any], ID No: [_____] , Address: [_____]

(if applicable; hereinafter collectively the "Founding Shareholders")

3. THE SEED INVESTORS:

As listed in Schedule 2 (the "Investors") who have each executed a Subscription Agreement and this Agreement.

(The Company, Founding Shareholders, and Investors are hereinafter collectively referred to as the "Shareholders")

BACKGROUND

A. The Company develops SiyaBusa ERP, a cloud-based enterprise resource planning platform with 17+ integrated business modules and 150+ data tables, serving businesses across Southern Africa;

B. The Founding Shareholders established the Company and collectively hold 100,000,000 Ordinary Shares;

C. The Company has raised seed capital from the Investors who now collectively hold up to 20,000,000 Ordinary Shares;

D. The Parties wish to regulate their rights and obligations as Shareholders in the Company.

ARTICLE 1: DEFINITIONS

Defined Term	Meaning
"Acceptance Notice"	A written notice accepting an offer to buy shares under the ROFR provisions
"Board"	The board of directors of the Company, as constituted from time to time
"Drag-Along"	The right set out in Article 8.4
"Exit Event"	A Change of Control, IPO, trade sale, or liquidation of the Company
"Founder Shares"	100,000,000 Ordinary Shares held by the Founding Shareholders
"Investor Shares"	Up to 20,000,000 Ordinary Shares issued to Investors in the Seed Round
"IPO"	An initial public offering of the Company's shares on a recognised stock exchange
"MOI"	The Memorandum of Incorporation of the Company
"Offer Price"	The price per share in any proposed transfer, as set out in a Transfer Notice
"Reserved Matters"	Matters requiring Investor consent, as listed in Article 5.3
"ROFR"	Right of First Refusal as defined in Article 8.2
"Tag-Along"	The right set out in Article 8.3
"Transfer Notice"	A written notice from a Shareholder of its intention to sell shares

ARTICLE 2: SHARE CAPITAL STRUCTURE

2.1 Authorised Share Capital

The Company's authorised share capital is **1,000,000,000 (One Billion)** Ordinary Shares of no par value.

2.2 Issued Share Capital at Closing

Shareholder	Shares Held	%	Category
Sibusiso Mavuso	100,000,000	83.33%	Founder Shares
Seed Investors (Pool)	20,000,000	16.67%	Investor Shares
TOTAL ISSUED	120,000,000	100%	

Individual Investor Allocation: Each Investor's specific share count will be determined by their investment amount divided by R0.10/share, as recorded in their Subscription Agreement and updated in Schedule 2 of this Agreement.

2.3 Subscription Price

The Seed Round subscription price is **R0.10 (ten cents) per Ordinary Share**, implying a pre-money valuation of R10,000,000 (Ten Million Rand).

ARTICLE 3: BOARD OF DIRECTORS

3.1 Board Composition

The Board shall consist of not less than three (3) and not more than seven (7) directors, initially comprising:

Role	Appointed By	Name
Executive Director (CEO)	Founding Shareholders	Sibusiso Mavuso
Executive Director (CTO)	Founding Shareholders	[To be appointed]
Independent Non-Executive Director	Investor majority (if qualified >10%)	[To be appointed]

3.2 Investor Board Rights

Investors collectively holding at least 10% of total issued shares shall have the right to appoint one (1) independent non-executive director to the Board.

3.3 Board Meetings

The Board shall meet at least quarterly. Meetings may be held in person, by telephone, or by video conference.

3.4 Quorum

Quorum requires a majority of directors, including at least one (1) Founding Director.

3.5 Voting

Each director has one vote. Decisions are by a simple majority except for Reserved Matters.

ARTICLE 4: SHAREHOLDER MEETINGS

4.1 Annual General Meeting

The Company shall hold an Annual General Meeting within six (6) months of each financial year end.

4.2 Notice

Notice of any shareholder meeting shall be given at least ten (10) Business Days in advance.

4.3 Ordinary Resolutions

Ordinary resolutions require approval by shareholders holding more than 50% of votes exercised.

4.4 Special Resolutions

Special resolutions require approval by shareholders holding at least 75% of votes exercised.

ARTICLE 5: GOVERNANCE AND RESERVED MATTERS

5.1 Day-to-Day Management

The Founding Shareholders shall manage the Company's day-to-day operations in accordance with the approved budget and business plan.

5.2 Information Rights

Investors shall be entitled to:

- Monthly management accounts within 30 days of month end;
- Annual audited financial statements within 90 days of financial year end;
- Quarterly business updates and KPI reports;
- Notice of any material event within 7 business days.

5.3 Reserved Matters — Requiring Investor Consent

The following matters shall require prior written consent of Investors holding a majority of Investor Shares:

1. Issuance of new shares or securities that would dilute existing shareholders below the agreed thresholds;
2. Amendments to the MOI or any shareholders agreement;
3. Any merger, amalgamation, acquisition, or disposal of material assets;
4. Any change to the principal business of the Company;
5. Incurring debt in excess of R500,000 in aggregate not in the ordinary course of business;
6. Related-party transactions above R100,000 per annum;
7. Voluntary liquidation or winding-up of the Company.

ARTICLE 6: FOUNDER SHARE VESTING

6.1 Vesting Schedule

To protect the Investors, Founder Shares are subject to a reverse vesting schedule:

Period	Shares Vested	Cumulative Vesting
Year 1 (12 months from incorporation)	25,000,000 (25%)	25%
Year 2	25,000,000 (25%)	50%
Year 3	25,000,000 (25%)	75%
Year 4	25,000,000 (25%)	100%

6.2 Acceleration

All unvested Founder Shares shall vest immediately upon a Change of Control or IPO.

6.3 Leaver Provisions

If a Founding Shareholder leaves the Company, unvested shares shall be offered back to the Company at nominal value (R0.001/share).

ARTICLE 7: DIVIDEND POLICY

Dividends shall not be declared or paid until the Company has:

1. Achieved EBITDA profitability for two consecutive quarters;
2. Maintained a minimum cash reserve of six (6) months operating expenses;
3. Resolved any outstanding investor obligations.

Dividend policy shall be determined by the Board with Investor consent.

ARTICLE 8: TRANSFER OF SHARES

8.1 Lock-Up

No Shareholder may transfer any shares without the prior written consent of the Board for a period of twelve (12) months from the Closing Date.

8.2 Right of First Refusal (ROFR)

After the Lock-Up period, any Shareholder wishing to transfer shares (the "Seller") must:

- (a) Give written notice (Transfer Notice) to all other Shareholders stating the number of shares, Offer Price, and proposed buyer;
- (b) Each existing Shareholder has fifteen (15) Business Days to exercise ROFR;
- (c) If not all shares are taken up by existing Shareholders, the balance may be sold to the proposed buyer at the same Offer Price;
- (d) Any sale to a third party must be completed within sixty (60) days of the Transfer Notice.

8.3 Tag-Along Rights

If a Founding Shareholder proposes to sell shares representing more than 25% of total issued shares:

- (a) Each Investor shall have the right to participate in the sale on a pro rata basis;
- (b) The Investor's shares shall be sold at the same Offer Price and on the same terms and conditions as the Founders' shares;
- (c) Investors must exercise Tag-Along rights within fifteen (15) Business Days of notice.

8.4 Drag-Along Rights

If Shareholders holding more than 75% of issued shares agree to transfer all their shares to a bona fide third party:

- (a) Minority Shareholders shall be obliged to sell their shares on the same terms;
- (b) The Company shall notify all Shareholders at least thirty (30) days in advance;
- (c) All Shareholders shall execute such documents as required to give effect to the transaction.

8.5 Permitted Transfers

Transfers to the following shall not require Board consent:

- A Shareholder's wholly-owned subsidiary;
- A trust of which the Shareholder is the sole beneficiary;
- A family member (in the case of an individual Shareholder).

ARTICLE 9: EXIT PROVISIONS

9.1 Target Listing

The Company's target for capital markets listing is the JSE AltX (Alternative Exchange) within 5 years of the Closing Date, subject to meeting AltX eligibility requirements.

9.2 Exit Cooperation

All Shareholders agree to cooperate in good faith to facilitate any Exit Event, including signing required documentation, providing warranties, and releasing claims.

9.3 Liquidation Preference

Upon an Exit Event or Dissolution, funds shall be distributed in the following order:

1. Payment of all Company debts and creditor obligations;
2. Return of Investors' invested capital (1× non-participating preference);
3. Remaining proceeds distributed pro rata to all Shareholders including Investors.

ARTICLE 10: INTELLECTUAL PROPERTY

10.1 Company IP Ownership

All intellectual property created by employees, contractors, and founders in the course of business — including the SiyaBusa ERP platform, source code, business logic, trademarks, know-how, and documentation — shall be owned exclusively by the Company.

10.2 Founder Assignment

Each Founding Shareholder hereby assigns to the Company all rights to intellectual property created in connection with the Company's business, whether before or after the Closing Date.

ARTICLE 11: CONFIDENTIALITY

11.1 Obligation

Each Shareholder undertakes to keep confidential all Confidential Information relating to the Company and to use such information only for the benefit of the Company.

11.2 Duration

The confidentiality obligation survives termination of this Agreement for a period of five (5) years.

11.3 Exclusions

Confidentiality obligations do not apply to information that: (a) is in the public domain; (b) was independently developed; or (c) is required to be disclosed by law.

ARTICLE 12: GENERAL PROVISIONS

12.1 Governing Law

This Agreement shall be governed by the laws of the Republic of South Africa.

12.2 Dispute Resolution

All disputes shall first be referred to the Board for resolution. If unresolved within 30 days, the dispute shall be referred to arbitration in accordance with the Arbitration Act 42 of 1965.

12.3 Entire Agreement

This Agreement, together with each Subscription Agreement, constitutes the entire agreement between the Parties relating to the Company.

12.4 Amendment

This Agreement may only be amended in writing with consent of all Parties.

12.5 Breach

If any Party is in material breach and fails to remedy such breach within fourteen (14) days of written notice, the non-breaching Party shall be entitled to any remedy available at law or in equity.

SCHEDULE 1: FOUNDING SHAREHOLDERS

Name	ID Number	Shares	%
Sibusiso Mavuso	[_____]	100,000,000	83.33%*

*Post Seed Round, assumes full 20M seed shares issued.

SCHEDULE 2: SEED INVESTORS

Name	ID/Reg No	Investment (R)	Shares	%
[Investor 1]	[_____]	[_____]	[_____]	[_]%
[Investor 2]	[_____]	[_____]	[_____]	[_]%
[Investor 3]	[_____]	[_____]	[_____]	[_]%
TOTAL		[_____]	≤ 20,000,000	≤ 16.67%

SIGNATURES

The Parties have entered into this Agreement as of the date first written above.

THE COMPANY: Masaphokati Technologies (Pty) Ltd Name: Sibusiso Mavuso Title: Founder & Director _____ Signature & Date	FOUNDING SHAREHOLDERS: Name: Sibusiso Mavuso Capacity: Founding Shareholder _____ Signature & Date
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INVESTORS (each signs individually):	
Investor Name: _____ ID: _____ _____ Signature & Date	Investor Name: _____ ID: _____ _____ Signature & Date

Share Structure: Authorised 1,000,000,000 | Founder 100,000,000 (83.33%) | Seed 20,000,000 (16.67%) | Price R0.10/share | Pre-money R10,000,000